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File No: EXP202308373

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 2, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against KOMPASS SPAIN, S.L.U. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202308373

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 30, 2023. The complaint is directed against KOMPASS SPAIN, S.L.U. with NIF B86247715 (hereinafter, KOMPASS SPAIN). The reasons on which the complaint is based are, literally, as follows:

"This company has been sending SPAM for years. We have accessed the unsubscribe link they offer in the email several times, but emails from this company keep coming. Now our email is registered in the Robinson List. Therefore, we hereby file the corresponding complaint."

Along with the notification, only a certificate is provided certifying that the complainant has various email addresses and phone numbers registered in the aforementioned Robinson List since 03/18/23. No received emails are provided, neither headers nor body of the email, nor proof of having accessed the mentioned unsubscribe link and requested it.

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SECOND: Subsequently, on June 15, 2023, the complainant submitted a new document against the same respondent - which is attached to this file - in which they state:

"Despite never having had any commercial relationship with the company and having clicked on the link to stop receiving messages in the past, they continue to send me advertisements. I already filed a complaint for another unwanted email about two weeks ago, and they keep sending me (this one is from June 13)."

Along with this second document, the email of June 13, 2023, is provided, which is cited as being sent from the email address ***EMAIL.1 to the email address ***EMAIL.2, where it is observed that there is a link to unsubscribe, although it does not include previous emails that they claim to have been receiving for years, nor a screenshot proving that they requested the unsubscribe or a message that appears when clicking the mentioned link.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 06/16/23, the aforementioned complaint was forwarded to KOMPASS SPAIN, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 06/19/2023 as stated in the acknowledgment of receipt in the file.

On July 11, 2023, a response document from the respondent was received by this Agency indicating, in summary, the following:

- They openly acknowledge that within their corporate purpose, they engage in marketing campaigns via the internet, using the public email addresses of their potential clients.
- That at the end of May of the current year, they carried out a campaign of commercial emails that included the address ***EMAIL.2, belonging to the company TRANSCREATION INTERNATIONAL IBERICA S.L., which is publicly accessible, as it appears listed on their website ***URL.1, along with their address and contact phone number. Furthermore, the website itself indicates that the aforementioned company primarily focuses on providing translations in various languages, making it a potential client of this Company.
- They acknowledge having sent the commercial email of May 30, 2023, referred to by the complainant, and that the complainant exercised the unsubscribe option, but there must have been an error or it was not done correctly, as it was not registered in the system, where other unsubscriptions processed on the same day are recorded.

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- That a new commercial email was sent on June 16, 2023, and that the respondent processed the unsubscribe request correctly on this occasion, being registered in the system.
- Consequently, on June 16, 2023, when the unsubscribe process was correctly completed, the email ***EMAIL.2 and its owner were removed from its database, so that no further advertising emails from this Company will be received.

- That all measures have been adopted aimed at making effective the right of opposition of potential clients, such as verifying that the unsubscribe system for commercial emails works, removing the claimant's data from the database, preparing a report from the responsible party on the tool and measures to be adopted with recommendations, and initiating a training process for staff regarding how to process these unsubscriptions.

Along with the allegations, KOMPASS SPAIN does not attach any documents, although screenshots of the management tool used by the company are copied, which prove that the unsubscribe on May 30, 2023, was not among the list of other registered unsubscriptions, and that the unsubscribe on June 16, 2023, appeared to be registered correctly.

THIRD: On August 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: A monitored report from the company obtained from Axesor dated October 4, 2023, is attached to this procedure, which includes its corporate purpose and annual turnover, among other data, as well as the homepage of the KOMPASS SPAIN website, where its services are advertised as a commercial marketing agency dedicated to client acquisition for other companies.

LEGAL GROUNDS

I

Jurisdiction

The Director of the Spanish Agency for Data Protection is competent to resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Prohibition of commercial communications made via email or equivalent electronic communication

means

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood as any unsolicited message that typically aims to offer, market, or attempt to arouse interest regarding a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers in terms of the volume of transmissions have allowed this practice to be carried out abusively and indiscriminately. The LSSI, in its Article 21.1, expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients." That is to say, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient, although this prohibition finds its exception in paragraph 2 of the aforementioned Article 21, which authorizes the sending of commercial communications when "there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client." Thus, the sending of unsolicited commercial communications, outside the exceptional case of Article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In this regard, according to these rules, consent, in addition to being prior, specific, and unequivocal, must be informed. And this information must be full and accurate regarding the sector of activity from which advertising may be received, with a warning.

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on the right to deny or withdraw consent. This information, as configured, must be taken as a necessary assumption to grant validity to the expression of will of the affected party.

III

Prohibition of unsolicited or expressly authorized commercial communications

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and defined in its Annex as follows:

"f) 'Commercial communication': any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.

For the purposes of this Law, the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, will not be considered commercial communication, nor will communications related to the goods, services, or image offered when they are prepared by a third party and without economic compensation."

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of a company, organization, or person with a commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Service of the Information Society" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient."

The concept of service of the information society also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

The aforementioned section adds that the sending of commercial communications is a service of the information society, as long as it represents an economic activity.

According to section d) of the aforementioned Annex, the recipient is the “natural or legal person who uses, whether or not for professional reasons, a service of the information society.”

From the above, it follows that when the commercial communication does not meet the requirements required by the concept of Services of the Information Society, it loses its character as a commercial communication. In this sense, the second paragraph of Annex f) of the LSSI indicates two cases that will not be considered commercial communication for the purposes of this Law. On one hand, the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, and, on the other hand, communications related to the goods, services, or image offered when they are prepared by a third party and without economic compensation.

The emails sent to the complainant therefore have a clear commercial character, since their content is promotional, as recognized by the entity being complained about, and is part of its corporate purpose.

IV

Unfulfilled obligation

Title VII of the LSSI under the heading “Infringements and sanctions” contains the sanctioning regime applicable in case any of the infringements contained in the table of infringements included therein occurs.

Specifically, Article 37 specifies that “providers of services of the information society are subject to the sanctioning regime established in this Title when this Law is applicable to them.”

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the “natural or legal person who provides a service of the information society.”

As indicated previously, the LSSI in its Annex letter a) defines “Service of the Information Society” as “any service normally provided for a fee, at a distance, by electronic means and at the individual request of the recipient. The concept of service of the information society also includes services not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.”

Such Annex also indicates that (the underlining is ours): “The following are services of the information society, among others and as long as they represent an economic activity: (...)

4th The sending of commercial communications. (...)

In the present case, there is no doubt that the party being complained about is subject to this regulation as a provider of services of the information society, and therefore will be responsible for any possible commission of administrative infringements provided for in Articles 38 and 39 of the LSSI, if it fails to comply with the requirements established for sending commercial communications in Articles 21 and 22 of the same legal body.

V

Classification of the infringement

The known facts could constitute an infringement, attributable to the party being complained about, for violating the provisions of Article 21 of the LSSI, which states the following: (the underlining is ours):

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“Article 21. Prohibition of commercial communications made through email or equivalent electronic communication means.

1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact data of the recipient and uses it to send commercial communications regarding products or services of its own company that are

similar to those initially contracted with the client. In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them. (...)”

In accordance with the evidence available at this moment in the procedure, and without prejudice to what results from the instruction, it appears that the respondent has violated the prohibition on sending commercial communications without prior consent or prior contractual relationship with those whom the respondent refers to as “potential clients,” established in Article 21.1 of the LSSI.

This is so because it openly acknowledges in its allegations that “within its corporate purpose, it is dedicated to carrying out marketing campaigns via the internet, using the public email addresses of its potential clients,” which is outright prohibited unless prior consent is obtained or there is a prior contractual relationship with them. This habitual practice has materialized, at least, in the case of the claimant, regarding whom it is stated that their email address was obtained from their website, without even having requested their consent.

VI

Qualification of the infringement

In accordance with the provisions of Article 38, in its paragraphs 3 and 4.d) of the LSSI, the violation of the provisions of Article 21 of the LSSI may constitute a serious or minor infringement:

“3. Serious infringements are: (...)”

c) The mass sending of commercial communications by email or other equivalent electronic communication means, or their persistent or systematic sending to the same recipient of the service when such sendings do not comply with the requirements established in Article 21 (...).”

“4. Minor infringements are: (...)”

d) The sending of commercial communications by email or other equivalent electronic communication means when such sendings do not comply with the requirements established in Article 21 and do not constitute a serious infringement (...).”

Consequently, since only the sending of two commercial communications is recorded in the present file, the infringement of Article 21 of the LSSI, in the terms indicated by the aforementioned Article 38.4.d), is initially classified as a minor infringement. However, if the instruction proves that there has been a mass sending of unsolicited commercial communications to different recipients or their persistent or systematic sending to the same recipient, in the terms indicated in the also cited Article 38.3.c), a serious infringement will occur for the purposes of the LSSI.

IX

Proposal for sanction

The commission of a minor infringement may be sanctioned with a fine of up to €30,000 in accordance with Article 39.1.c) of the LSSI, which stipulates the following:

“1. For the commission of the infringements set forth in the previous article, the following sanctions shall be imposed:

c) For the commission of minor infringements, a fine of up to 30,000 euros.”

Furthermore, without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in Article 40 of the LSSI:

“The amount of the fines imposed shall be graded taking into account the following criteria:

a) The existence of intent.

b) The period of time during which the infringement has been committed.

c) The recurrence of the commission of infringements of the same nature, when this has been declared by a firm resolution.

d) The nature and amount of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of billing affected by the committed infringement.

g) The adherence to a code of conduct or to a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.”

In light of the circumstances present in this case, without prejudice to what results from the instruction, it would be appropriate to initially apply the grading circumstance of Article 40.a) of the LSSI, referring to the existence of intent or gross negligence, a term that must be interpreted as equivalent to the degree of culpability according to the Judgment of the National Court of 12/11/07.

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Appeal No. 351/2006, since in cases like the present one – where the entity being claimed is engaged in digital marketing, and to fulfill its main activity regularly sends commercial communications by email – it is the responsibility of the professional in the sector to determine a prior system for obtaining informed consent that complies with the mandate of Article 21 of the LSSI.

For all these reasons, the amount of the fine that would initially correspond, without prejudice to what results from the instruction of the procedure, would be €5,000 (five thousand euros).

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO INITIATE SANCTIONING PROCEDURE against KOMPASS SPAIN, S.L.U., with NIF B86247715, for the alleged infringement of Article 21, initially classified as minor under Article 38.4.d) of the LSSI.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be a fine of €5,000 (FIVE THOUSAND EUROS), as provided in Article 39.1.c) of the LSSI.

FIFTH: TO NOTIFY this agreement to KOMPASS SPAIN, S.L.U., with NIF B86247715, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made within the stipulated period, this agreement may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction to be imposed in the present procedure.

With the application of this reduction, the sanction would be set at €4,000 (FOUR THOUSAND EUROS), resolving the procedure with the imposition of this sanction.

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Similarly, it may, at any time prior to the resolution of the present procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €4,000 (FOUR THOUSAND EUROS), and its payment will imply the termination of the procedure.

The reduction for voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000 (THREE THOUSAND EUROS).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (€4,000 or €3,000), it must make the payment by depositing it into account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, it must send the proof of payment to the General Subdirectorate for Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43 of the LSSI.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, no administrative appeal can be filed against this act.

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Director of the Spanish Agency for Data Protection

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SECOND: On November 25, 2023, the entity being claimed proceeded to pay the sanction in the amount of €3,000, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

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THIRD: The payment made, within the time granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative pathway against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions established in Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or appeal in the administrative pathway against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202308373, in accordance with the provisions established in Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to KOMPASS SPAIN, S.L.U.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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